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Case Number: 23TRCV03575 Hearing Date: September 14, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Monday, September 14, 2026

Department M Calendar No.

PROCEEDINGS

Debra Washington v. Pan Pacific
Mechanical, et al.

23TRCV03575

1. Northrop

Grumman Systems Corporation's Motion for Summary Judgment

2. UDC

Corporation's Motion for Summary Judgment, or, in the Alternative, Summary
Adjudication

TENTATIVE RULING

Northrop Grumman Systems

Corporation's Motion for Summary Judgment is denied.

UDC Corporation's Motion for Summary Judgment is denied.

UDC Corporation's Motion for Summary Adjudication is denied, in part, and

granted, in part.

As to the first cause of action for Premises

Liability, the motion is granted. As to the second cause of action for General Negligence, the motion is denied.

Background

Plaintiff filed the Complaint on October 26, 2023. Plaintiff alleges the following facts. Plaintiff slipped and stumbled during the course of her employment while working at a jobsite on the roof of Northrop Grumman Systems Corporation's facility. Defendants owned and/or controlled the premises. Plaintiff alleges the following causes of action: 1. Premises Liability; 2. General Negligence.

Objections

Plaintiff's objections 1 to 8 to the declaration of Curt Schendel are overruled.

Motions for

Summary Judgment/Adjudication

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication "has met his or

her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." CCP § 437c(p)(2). "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." CCP § 437c(p)(2). "If the plaintiff cannot do so, summary judgment should be granted." *Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal. App. 4th 463, 467.

"A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." Code Civ. Proc., § 437c(p)(1).

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (*Avivi*, 159 Cal.App.4th at 467; CCP § 437c(c).)

Northrop Grumman Systems Corporation ("NGSC")

Defendant moves for summary judgment as to Plaintiff's Complaint and the Complaint in Intervention. The motion is based on the grounds that: (1) Plaintiff's cause of action for negligence is barred by the Privette Doctrine and (2) Plaintiff's cause of action for premises liability is barred by the Privette Doctrine. *Privette v. Superior Court* (1993) 5 Cal.4th 689, 698.

"The elements of a cause of action for negligence are duty, breach, causation, and damages." *Johnson v. Prasad* (2014) 224 Cal.App.4th 74, 78. "The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." *McIntyre v. The Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671. As to the first and second causes of action for Premises Liability and General Negligence

and Premises Liability, no triable issue of material fact exists.

The Court finds that Defendant has met its initial burden of showing that Plaintiff's causes of action lack merit by showing that an element of the causes of action (duty) cannot be established, or by showing that there is a complete defense to the causes of action. However, Plaintiff has met her burden to show that a triable issue of one or more material facts exists as to the causes of action. CCP § 437c(p)(2).

Defendant's motion is essentially based on the ground that Defendant owed no duty to Plaintiff because, pursuant to *Privette v. Superior Court* (1993) 5 Cal.4th 689, Defendant cannot be liable to a third-party contractor's employee for injuries suffered by the employee during the course and scope of his employment.

Under the *Privette* doctrine, a hirer or general contractor, such as moving Defendant, is not liable for injuries suffered by an employee of the hirer's independent contractor. See *Privette v. Superior Court* (1993) 5 Cal.4th 689; See also *Toland v. Sunland Housing Group, Inc.* (1998) 18 Cal.4th 253. As the owner of the premises, NGSC is considered a "hirer" for purposes of the *Privette* doctrine. See *Michael v. Debeste Transp., Inc.* (2006) 137 Cal.App.4th 1082, 1097. An exception to the *Privette* doctrine exists when the hirer has retained control over the mode of work contracted for and the exercise of control has affirmatively contributed to the employee's injuries. See *Hooker v. Dept. of Transp.* (2002) 27 Cal.4th 198, 210. Another exception exists where the hirer of an independent contractor provides unsafe equipment that affirmatively contributes to the injury of an employee of the contractor. *McKown v. Wal-Mart Stores, Inc.* (2002) 27 Cal.4th 219, 225.

"[E]ven if hirers may owe unrelated third parties a retained control duty based on retained control alone, hirers owe the contract workers a retained control duty only with something more. Contract workers must prove that the hirer both retained control and actually exercised that retained control in such a way as to affirmatively contribute to the injury. A hirer "actually exercise[s]" its retained control over the contracted work when it involves itself in the contracted work such that the contractor is not entirely free to do the work in the contractor's own manner. In other words, the hirer must exert some influence over the manner in which the contracted work is

performed. Unlike “retained control,” which is satisfied where the hirer retains merely the right to become so involved, “actual exercise” requires that the hirer in fact involve itself, such as through direction, participation, or induced reliance. “Affirmative contribution” means that the hirer’s exercise of retained control contributes to the injury in a way that isn’t merely derivative of the contractor’s contribution to the injury. Where the contractor’s conduct is the immediate cause of injury, the affirmative contribution requirement can be satisfied only if the hirer in some respect induced — not just failed to prevent — the contractor’s injury-causing conduct.” *Sandoval v. Qualcomm Incorporated* (2021) 12 Cal.5th 256, 276–277 (internal citations and quotations omitted).

“Once an independent contractor becomes aware of a hazard on the premises, “the landowner/hirer delegates the responsibility of employee safety to the contractor” and “a hirer has no duty to act to protect the employee when the contractor fails in that task” (Kinsman, at p. 674, 36 Cal.Rptr.3d 495, 123 P.3d 931.) A rule establishing landowner liability for a known hazard where there were no reasonable safety precautions the contractor could have adopted to protect against the hazard would turn Privette’s presumption of delegation on its head by requiring the landowner to affirmatively assess workplace safety. The landowner would need to determine whether the contractor is able to adopt reasonable safety precautions to protect against the known hazard and, if not, to remedy the hazard. This makes little sense given that a landowner typically hires an independent contractor precisely because of the contractor’s expertise in the contracted-for work and the hirer usually has no right to interfere with the contractor’s decisions regarding safety or otherwise control the contractor’s work.” *Gonzalez v. Mathis* (2021) 12 Cal.5th 29, 45–46. “[We] reject a rule that would allow a contractor to recover in tort so long as it proves it was unable to adopt reasonable safety precautions in the face of a known hazard.” *Id.* at 46.

Defendant NGSC submitted facts that it did not retain control over Plaintiff and that any alleged retained control did not affirmatively contributed to Plaintiff’s injuries. Mere supervisory power without active participation and contribution to the Plaintiff’s injuries are insufficient to establish an exception to the Privette doctrine. See *Id.*

Defendant presented evidence that it did not retain or exercise control over Plaintiff, did not direct the means of performance of Plaintiff, and did not hire Plaintiff. (Defendant’s Separate Statement of Facts and Supporting Evidence, 7, 13-17). Defendant states that it delegated the responsibility for

safety, inspection, and maintenance to UDC, and then various sub-contracts were executed eventually leading to the delegation of such responsibility to Plaintiff's employer Karcher. (Id.)

However, Plaintiff submitted facts supported with competent evidence to show the existence of a triable issue of fact that NGSC retained control of the jobsite and affirmatively contributed to Plaintiff's injuries. The evidence submitted by Plaintiff shows the existence of a triable issue of material fact that NGSC retained control over the roof and walkway on the roof which was part of the job site. (Plaintiff's Additional Separate Statement of Facts and Supporting Evidence (hereafter "Plaintiff's Facts"), 1-19). Plaintiff submitted evidence to show the existence of a triable issue of material fact that Defendant affirmatively contributed to Plaintiff's injury. Plaintiff provided evidence that Defendant provided the instrumentality that caused Plaintiff's injury and was well aware of the defect. (Id. at 20-22, 30-48). An owner/hirer may be held liable under an exception to the Privette Doctrine to an employee of an independent contractor when it provides unsafe equipment which affirmatively contributes to the Plaintiff's injury. By providing the defective equipment, a triable issue of material fact exists as to whether Defendant, then, affirmatively contributed to the Plaintiff's injury. *McKown v. Wal-Mart Stores, Inc.* (2002) 27 Cal.4th 219, 227. Plaintiff submitted evidence that NGSC required the use of the walkway on its roof which forced Plaintiff to encounter NGSC's own defective walkway mat.

As there is sufficient evidence to show that a triable issue of material fact exists that moving Defendant retained control and affirmatively contributed to Plaintiff's injuries, Defendant has not established the lack of a duty of care based on the Privette Doctrine. Plaintiff has shown that an exception to the Privette Doctrine may apply under the facts of this action.

Therefore, NGSC's Motion for Summary Judgment is denied.

UDC Corporation, Inc. ("UDC")

Defendant UDC moves "for an order granting summary judgment or, in the alternative, summary adjudication of the causes of action asserted against it in Plaintiff Debra Washington's Complaint. This Motion is made pursuant to Code of Civil Procedure § 437c on the grounds that there is no triable issue as to any material fact, and that UDC is entitled to entry of summary judgment as a matter of law. In the alternative, Defendant moves for

summary adjudication of each of Plaintiff's two causes of action. Cal. Code Civ. Proc. § 437c (f)(1)-(2). [¶] Plaintiff's cause of action for negligence against UDC is barred by the doctrine first established by the California Supreme Court in *Privette v. Superior Court*, 5 Cal. 4th 689 (1993)." (Notice of Motion, p. 2, lines 4-12).

The Court finds

that Defendant has met its initial burden of showing that Plaintiff's causes of action lack merit by showing that an element of the causes of action (duty) cannot be established, or by showing that there is a complete defense to the causes of action. However, Plaintiff has met her burden to show that a triable issue of one or more material facts exists as to the causes of action. CCP § 437c(p)(2).

Defendant's motion is essentially based on the ground that Defendant owed no duty to Plaintiff because, pursuant to *Privette v. Superior Court* (1993) 5 Cal.4th 689, Defendant cannot be liable to a third-party contractor's employee for injuries suffered by the employee during the course and scope of his employment.

Under the *Privette*

doctrine, a hirer or general contractor, such as moving Defendant, is not liable for injuries suffered by an employee of the hirer's independent contractor. See *Privette v. Superior Court* (1993) 5 Cal.4th 689; See also *Toland v. Sunland Housing Group, Inc.* (1998) 18 Cal.4th 253. Defendant submitted evidence that it was the general contractor pursuant to a contract with NG, and that Defendant UDC subcontracted with various sub-contractors and one of those sub-contractors contracted with Karcher Plaintiff's employer. Defendant states that it did not retain control over the roof job-site and did not affirmatively contribute to Plaintiff's injuries. (Defendant's Separate Statement of Facts and Supporting Evidence, 1-12, 14-26)

However, Plaintiff submitted facts supported with competent evidence to show the existence of a triable issue of fact that UDC retained control of the jobsite and affirmatively contributed to Plaintiff's injuries. The evidence submitted by Plaintiff shows the existence of a triable issue of material fact as to whether UDC retained control over the roof and walkway on the roof which was part of the job site. (Plaintiff's Additional Separate Statement of Facts and Supporting Evidence, 1-88). Pursuant to the contract with NGSC, UDC was the controlling entity on construction projects. (Plaintiff's Facts, 1-24). Plaintiff submitted evidence to show the

existence of a triable issue of material fact that UDC affirmatively contributed to Plaintiff's injury. Plaintiff provided evidence that Defendant UDC failed to correct a known defective condition, and this omission affirmatively contributed to Plaintiff's injuries. According to Plaintiff, UDC inspected the area and cleared the area for use as safe. (Id. at 38-58).

"Affirmative contribution means that the hirer's exercise of retained control contributes to the injury in a way that isn't merely derivative of the contractor's contribution to the injury. This requirement can be satisfied only if the hirer in some respect induced—not just failed to prevent—the contractor's injury-causing conduct. [...] Thus, [a] hirer's mere authority to prevent or correct a contractor's unsafe practices (retained control) does not, without more, limit the contractor's delegated control over the work." *Cordero v. Ghilotti Construction Co., Inc.* (2026) 119 Cal.App.5th 1105, 1115–1116 (internal citations and quotations omitted). Here, however, Plaintiff submitted evidence that Defendant did not merely fail to prevent or correct the unsafe condition, but, in fact, actively inspected the area and declared it safe for use. The evidence is sufficient to show the existence of a triable issue of material fact as to whether Defendant did not merely fail to prevent or remedy the incident, but, in fact, whether it induced the incident but representing that the area was safe.

"[A] hirer's failure to correct an unsafe practice of which it was aware, and that it retained the authority to correct, does not 'affirmatively contribute' to the employee's injury and thus will not support the assertion of a claim against the hirer arising out of that injury." *Ruiz v. Herman Weissker, Inc.* (2005) 130 Cal.App.4th 52, 65. "Affirmative contribution' occurs where a general contractor 'is actively involved in, or asserts control over, the manner of performance of the contracted work. [Citation.] Such an assertion of control occurs, for example, when the principal employer directs that the contracted work be done by use of a certain mode or otherwise interferes with the means and methods by which the work is to be accomplished." *Millard v. Biosources, Inc.* (2007) 156 Cal.App.4th 1338, 1348.

Plaintiff submitted evidence that NGSC directed all the work on the roof be done by traversing through the walkway and the defective mats. Plaintiff submitted evidence that NGSC contracted with UDC such that UDC would also have authority and control of the worksite including the roof and roof walkway. Plaintiff submitted evidence that UDC inspected the jobsite for slip and fall hazards and retained control of the jobsite to make

the work conditions safe, and, in its role as general contractor, reported to NG. Plaintiff provided evidence that UDC had the authority to stop the work based on the findings that it made. Specifically, Plaintiff submitted evidence that UDC conducted inspections of the walkway and deemed the walkway safe for use. (Plaintiff's Facts 1-88). Triable issues of fact exist as to whether moving Defendant retained control of the worksite and affirmatively contributed to Plaintiff's injuries.

As there is sufficient evidence to show the existence of a triable issue of material fact that moving Defendant retained control and affirmatively contributed to Plaintiff's injuries, Defendant has not established the lack of a duty of care based on the Privette Doctrine. Plaintiff has shown that an exception to the Privette Doctrine may exist under the facts of this action.

Therefore, UDC's Motion for Summary Judgment and Summary Adjudication of the second cause of action is denied.

In Plaintiff's opposition, Plaintiff stated that she does not oppose the motion for summary adjudication of the first cause of action for Premises Liability. The motion for summary adjudication of the first cause of action is granted.

Plaintiff is ordered to give notice of this ruling.